

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.36490 of 2023

Md. Shahin Alam

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Ms. Hosnara Shimul, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 06.02.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Doulatpur Police Station Case No.02 dated 01.01.2022 corresponding to G.R. case No.02 of 2022 (Doulatpur) under Sections 447/323/324/326/307/302/506/34 of the Penal

Code, 1860 now pending in the court of learned Chief Judicial Magistrate, Kushtia and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that due to long property dispute accused petitioner Md. Shahin Alam committed murder of victim Nazma Khatun by striking hashua blow on her head on 01.01.2022.

Ms. Hosneara Shimul, learned Advocate for the petitioner submits that the petitioner voluntarily surrendered on 07.06.2022. In this case 9 Prosecution Witnesses including the informant and daughter of victim Nazma Khatun have given evidence at trial. But none of them has implicated the petitioner with the commission of murder of victim Nazma Khatun.

Mr. Sujit Chatterjee, learned Advocate for the State raises objection granting of bail to the petitioner at this point of time.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

The name of the petitioner stands at serial No.1 in the FIR. But he did not make any confession. He voluntarily surrendered in connection of this case on 07.06.2022. In this case 9 Prosecution

Witnesses including the informant who is the husband of the victim Nazma Khatun and daughter of above victim namely Bristy Akhter have given evidence in Court. But none of them has implicated the petitioner with the murder of the victim.

On consideration of above materials on record we find substance in this petition under Section 498 of the Code of Criminal Procedure and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is hereby made absolute.

Let accused-petitioner Md. Shahin Alam, son of Md. Jalal Uddin be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate, Kushtia.

The learned Judge of the Court below is at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner whatsoever.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

MD. MASUDUR RAHMAN
BENCH OFFICER